

Court No. - 77

Case :- CRIMINAL APPEAL U/S 413 BNSS DEFECTIVE No. -
78 of 2025

Appellant :- Purvanchal Vidyut Vitran Nigam Ltd.

Respondent :- State of U.P. and Another

Counsel for Appellant :- Chetan Chatterjee

Counsel for Respondent :- G.A.

Hon'ble Manoj Bajaj,J.

On the request of learned counsel for the applicant, put up this case
on 8th September, 2025, as fresh.

Order Date :- 8.5.2025

Raj



HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL APPEAL U/S 413 BNSS DEFECTIVE No. - 78 of 2025

Purvanchal Vidyut Vitran Nigam Ltd.

.....Appellant(s)

Versus

State of U.P. and Another

.....Respondent(s)

Counsel for Appellant(s)	:	Chetan Chatterjee
Counsel for Respondent(s)	:	G.A.

Court No. - 80

HON'BLE RAJEEV MISRA, J.

The matter has been wrongly placed before this Bench.

Put up this case as a fresh case on 15.9.2025 before appropriate Bench.

(Rajeev Misra,J.)

September 8, 2025
HSM



HIGH COURT OF JUDICATURE AT ALLAHABAD

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Purvanchal Vidyut Vitran Nigam Ltd.

.....Appellant(s)

Versus

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.....Respondent(s)

Counsel for Appellant(s)	:	Chetan Chatterjee
Counsel for Respondent(s)	:	G.A.

Court No. - 81

HON'BLE MANOJ BAJAJ, J.

On request of counsel for the appellant, case is adjourned to 22.09.2025,
as fresh.

(Manoj Bajaj,J.)

September 15, 2025
Prachi



2025:AHC:169925

HIGH COURT OF JUDICATURE AT ALLAHABAD
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Counsel for Appellant(s)	:	Chetan Chatterjee
Counsel for Respondent(s)	:	G.A.

Court No. - 81

HON'BLE MANOJ BAJAJ, J.

In Ref:- Criminal Misc. (Delay Condonation) Application

The office has reported this appeal to be beyond time by 102 days.

After considering the submissions made by the learned counsel for applicant and upon perusing the application for condonation of delay, it appears that sufficient cause has been shown to explain the delay in filing of the appeal and as such, the delay is condoned.

The application for condonation of delay is accordingly allowed.

Office to allot regular number to this appeal.

(Order on Appeal)

Appellant has filed this appeal under Section 413 Bhartiya Nagrik Suraksha Sanhita, 2023 for setting aside the impugned judgment dated 22.10.2024 passed by Special Judge (EC Act)/Additional District and Sessions Judge, Ballia in Special Sessions Trial No. 199 of 2018; titled *State of U.P. vs. Shri Ram Chaurasiya*, arising out of Case Crime No. 358 of 2017, under Section 135 Electricity Act, 2003, Police Station Maniyar, District Ballia, whereby lesser sentence has been awarded to the accused-opposite party no. 2 with inadequate fine of the assessed value as per Section 126 Electricity Act, 2003 read clause 6.8(c)(iii) U.P. Electricity Supply Code, 2005.

During the course of hearing, it is not disputed by the learned counsel for the appellant that the assessment arrived at by the Special Court in terms of Section 154 Electricity Act, 2003, if, found to be incorrect, the remedy of

review can be availed.

Concededly, no such review application has been filed before the Special Court.

M. Chetan Chatterjee, learned counsel for the appellant prays for withdrawal of this application in order to avail the alternative remedy before the Special Court.

The appeal is dismissed as withdrawn with the liberty aforesaid.

(Manoj Bajaj,J.)

September 22, 2025
Brijesh